

Privacy Policy

BharatPay Technologies Private Limited

Effective Date: 30 August 2026

Version: 1.0

Registered Office: 18th Floor, Atria Business Park, Senapati Bapat Marg, Lower Parel, Mumbai, Maharashtra 400013, India

Important: This Privacy Policy is a working corporate draft prepared for legal and regulatory review before publication or reliance. It should be read together with BharatPay's product terms, customer agreements, consent notices, and any service-specific disclosures.

1. Introduction and scope

BharatPay Technologies Private Limited ("**BharatPay**", "**we**", "**us**", or "**our**") is an Indian fintech company headquartered in Mumbai, Maharashtra. We provide digital payment facilitation, merchant technology, account-information, payment-processing, lending-support, fraud-prevention, customer-support, and related financial-technology services through our websites, mobile applications, application programming interfaces, merchant interfaces, customer-care channels, and other digital or physical touchpoints (collectively, the "**Services**").

This Privacy Policy explains how BharatPay collects, receives, uses, stores, shares, protects, retains, and deletes personal data relating to individuals who use or interact with the Services. It applies to customers, prospective customers, merchants, merchant personnel, authorised representatives, beneficiaries, payers, payees, agents, visitors to our websites, applicants, and other individuals whose personal data is processed by or on behalf of BharatPay.

For the purposes of applicable Indian data-protection law, BharatPay generally acts as a **Data Fiduciary** when it determines the purpose and means of processing personal data. A person whose personal data is processed is referred to in this Policy as a **Data Principal**. Where BharatPay processes personal data solely on behalf of a bank, regulated financial institution, merchant, or other customer, that entity may be the relevant Data Fiduciary and BharatPay may act as its **Data Processor** under documented instructions.

We collect and process personal data **only for specified, lawful, and proportionate purposes** described in this Policy, in a notice presented to you, in a contract or service-specific disclosure, or as otherwise permitted by applicable law. This Policy is intended to broadly align with the Digital Personal Data Protection Act, 2023 (the "**DPDP Act**"), applicable rules and notifications, applicable directions of Indian regulators, and generally

accepted Indian privacy principles. If a specific law, regulatory direction, or contractual arrangement imposes a higher or more specific requirement, that requirement will apply to the extent of the inconsistency.

2. Categories of personal data collected

Depending on the Services used and the relationship between you and BharatPay, we may collect the following categories of personal data. We do not seek to collect information that is unnecessary for the stated purpose.

Category	Examples	Typical source
Identity and contact data	Name, date of birth, photograph, residential or business address, email address, mobile number, preferred language, and communication details	You, authorised representatives, verified partners
KYC and verification data	PAN, Aadhaar-related information where lawfully permitted and appropriately consented to, government-issued identity-document details, address proof, video-KYC or liveness information, signature, and verification results	You, KYC service providers, regulated partners
Financial and transaction data	Bank-account details, UPI identifiers, card or tokenised payment details, wallet identifiers, transaction amounts, transaction history, settlement details, repayment information, and income or financial-profile information where required for a particular Service	You, banks, payment-system participants, merchants, regulated partners
Merchant and business data	Legal name, trade name, incorporation details, GSTIN, shop or establishment details, beneficial-owner information, authorised-signatory details, business bank details, invoices, and settlement preferences	Merchants, authorised representatives, public registries, partners

Device, network, and technical data	IP address, device model, operating system, app version, browser type, device identifiers, mobile-network information, approximate location derived from network or device settings, logs, crash reports, and security signals	Your device, browser, app, network, and service providers
Usage and communications data	Login records, feature usage, preferences, support tickets, call recordings where notified, chat content, survey responses, and correspondence	You, customer-support channels, service systems
Risk, fraud, and compliance data	Authentication events, transaction-risk indicators, sanctions or screening results, suspected fraud indicators, dispute information, chargeback information, and records relevant to prevention, detection, investigation, or reporting of unlawful activity	You, payment participants, regulated entities, public authorities, fraud-prevention networks
Information received from others	Information provided by a merchant, payer, payee, employer, bank, lender, payment-system participant, referral partner, or authorised agent in connection with a Service	Relevant third party or partner

Certain Services may require additional personal data. Where that occurs, we will provide a service-specific notice identifying the data and purpose before or at the time of collection, unless applicable law permits otherwise.

3. Purpose and lawful basis for processing

BharatPay processes personal data only for a **specified purpose** and only to the extent reasonably necessary for that purpose. Depending on the circumstances, processing is based on your consent, a permitted legitimate use under the DPDP Act, performance of a contract or service requested by you, compliance with applicable Indian law or regulatory obligations, or another lawful basis recognised by applicable law.

Purpose	Examples of processing	Basis generally relied upon
Providing and administering the Services	Creating and managing accounts, authenticating users, processing payments, facilitating settlements, enabling UPI or other payment functions, supporting merchants, and communicating service information	Consent where required; service request or contract; permitted legitimate use
KYC, onboarding, and eligibility	Verifying identity, assessing eligibility for a requested product, conducting due diligence, maintaining records, and meeting onboarding requirements	Applicable law or regulatory obligation; consent where required; service request or contract
Payment security and fraud prevention	Detecting suspicious activity, authenticating transactions, preventing account takeover, investigating disputes, managing chargebacks, and protecting users and payment systems	Applicable law or regulatory obligation; permitted legitimate use; consent where required
Customer support and dispute resolution	Responding to queries, recording and reviewing support interactions where notified, resolving complaints, and maintaining service records	Service request or contract; consent where required; permitted legitimate use
Legal, regulatory, and governance requirements	Tax, accounting, audit, reporting, law-enforcement response, court or tribunal orders, regulatory examinations, sanctions screening, and enforcement of rights	Applicable law or regulatory obligation; permitted legitimate use
Product reliability and security	Monitoring availability, diagnosing errors, testing, maintaining records of access, improving reliability, and protecting networks and systems	Permitted legitimate use; consent where required; service request or contract

Communications and marketing	Sending service notices, security alerts, product information, surveys, and—where required—promotional communications	Service request or contract for essential communications; consent where required for marketing
Business administration	Managing vendors, maintaining corporate records, handling employment or applicant processes, and protecting BharatPay’ s legal and commercial interests	Applicable law or regulatory obligation; contract; permitted legitimate use; consent where required

We do not use personal data for a new or incompatible purpose without providing an appropriate notice and obtaining consent where required. BharatPay does **not sell personal data for unrelated commercial purposes**. We may use aggregated, de-identified, or anonymised information for analytics, service planning, security, and business reporting where it is not reasonably capable of identifying a Data Principal.

4. Consent and withdrawal of consent

Where consent is required, BharatPay will request it through a clear, specific, informed, free, unconditional, and unambiguous affirmative action. Consent will be limited to personal data reasonably necessary for the specified purpose. We will not make the provision of a Service conditional on consent to processing that is not necessary for that Service, except where the Service itself depends on that processing and this is clearly explained.

You may withdraw consent at any time through the consent controls in the relevant app or website, by changing your account preferences, by using the unsubscribe or opt-out mechanism in a communication, or by contacting us through the mechanism in Section 15. Withdrawal will not affect the lawfulness of processing carried out before withdrawal. It may affect our ability to continue a Service where the relevant processing is necessary for that Service; in that event, we will explain the consequence and stop the affected processing unless another lawful basis applies.

We will maintain reasonable records of consent and withdrawal requests and will process them within a reasonable period, subject to identity verification, technical feasibility, applicable law, and the need to preserve records required for legal, security, dispute-resolution, or regulatory purposes.

5. Notice provided to users

BharatPay will provide a privacy notice before or at the time of collecting personal data, or as otherwise required by applicable law. The notice will identify, in a clear and accessible manner, the personal data concerned, the specified purpose, the means of exercising applicable Data Principal rights, the grievance mechanism, and other information required by the DPDP Act and applicable rules.

Notices may be delivered in the app, website, account-opening journey, merchant dashboard, email, SMS, paper form, call script, or another effective channel. We will provide reasonable access to the notice in English and, where required or reasonably practicable, in an Indian language specified in the Eighth Schedule to the Constitution of India. Service-specific notices may supplement this Policy; if they conflict, the more specific notice will govern the relevant processing.

6. Data Principal rights

Subject to the DPDP Act, applicable rules, identity verification, technical feasibility, and lawful exceptions, you may exercise the following rights:

1. **Access and information.** You may request access to information about your personal data processed by BharatPay and the manner in which it is being processed, including a summary of the personal data and the purposes for which it is processed, to the extent required by applicable law.
2. **Correction and updating.** You may request correction of inaccurate or misleading personal data and completion of incomplete personal data. We may ask you to provide supporting information where reasonably necessary.
3. **Erasure.** You may request erasure of personal data where its retention is no longer necessary for the specified purpose, subject to records that BharatPay must retain under law, regulatory directions, contractual obligations, fraud-prevention requirements, dispute resolution, or establishment or defence of legal claims.
4. **Withdrawal of consent.** You may withdraw consent where processing is based on consent, as described in Section 4.
5. **Grievance redressal.** You may raise a grievance about BharatPay's processing of personal data through the mechanism in Section 7 and Section 15.
6. **Nomination.** Where and to the extent provided under applicable law, you may nominate another individual to exercise rights in the event of your death or incapacity.

Requests may be submitted through the in-app privacy centre, the account-support portal at <https://support.bharatpay.example.in/privacy>, or by email to privacy@bharatpay.example.in. We may request reasonable information to verify your identity and authority. We will not ordinarily charge a fee for a routine request, but may

charge a reasonable cost-based fee or decline manifestly unfounded or excessive requests where permitted by law.

7. Data Principal grievance redressal

BharatPay maintains a dedicated grievance mechanism for privacy and personal-data concerns. A grievance may be raised by email to grievance@bharatpay.example.in, through the privacy-support portal at <https://support.bharatpay.example.in/privacy/grievance>, or by post to the Grievance Officer at the address in Section 15. Please include your name, registered mobile number or email address, a description of the concern, relevant transaction or ticket reference, and the outcome requested. Do not include full card numbers, passwords, PINs, or one-time passwords.

We will acknowledge a grievance within **48 hours** and aim to provide a substantive response within **30 days**, unless a longer period is permitted or required by applicable law, the matter is unusually complex, or information from a third party or authority is necessary. If more time is needed, we will explain the reason and provide an updated target date. This internal mechanism does not limit any right to approach the Data Protection Board of India, a sectoral regulator, a consumer forum, a court, or another authority having jurisdiction.

8. Data security safeguards

BharatPay implements reasonable security safeguards appropriate to the nature, scope, context, and risks of processing. These safeguards may include encryption in transit and at rest where appropriate; tokenisation and masking of payment information; access controls based on least privilege; multi-factor authentication for privileged access; segregation of environments; secure software-development and change-management practices; vulnerability management; logging and monitoring; malware and endpoint protection; backups and recovery testing; personnel confidentiality obligations and training; vendor due diligence; and periodic risk assessments, audits, and testing.

No digital service can guarantee absolute security. Users must protect their credentials, devices, cards, PINs, passwords, and one-time passwords and must promptly report suspected unauthorised access. BharatPay will restrict access to personal data to personnel and service providers who need it for an authorised purpose and will take reasonable steps to ensure that persons processing personal data maintain confidentiality and follow applicable security requirements.

9. Data retention and deletion

BharatPay retains personal data **only for as long as necessary for the stated purpose or as required by law**. Retention periods depend on the type of data, the Service, the relationship with the Data Principal, security and fraud risks, contractual requirements, limitation periods, and applicable requirements under Indian banking, payment, tax, anti-money-laundering, corporate, consumer-protection, employment, and other laws.

When personal data is no longer required, BharatPay will delete, anonymise, or securely destroy it in accordance with its retention schedule and documented procedures, subject to lawful holds and technical backup cycles. Data that must be retained for legal, regulatory, audit, fraud-prevention, dispute-resolution, or legal-claim purposes will be isolated or access-restricted where reasonably practicable and will not be used for unrelated purposes.

10. Children’ s personal data

A **child** means an individual who has not completed eighteen years of age under the DPDP Act. BharatPay does not knowingly design general-purpose financial Services for children without implementing the safeguards required by applicable law. Where a Service may involve a child’ s personal data, BharatPay will apply additional protections, including appropriate age and identity checks, verifiable consent of a parent or lawful guardian where required, clear and age-appropriate notices, and restrictions on processing that is prohibited by the DPDP Act or applicable rules.

BharatPay will not undertake processing of children’ s personal data that is likely to cause a detrimental effect on the well-being of a child, and will not undertake tracking, behavioural monitoring, or targeted advertising directed at children except where expressly permitted by applicable law. If we learn that children’ s personal data was collected without the required authorisation, we will take reasonable steps to delete it or otherwise address the issue in accordance with applicable law. A parent or lawful guardian may contact us using the mechanism in Section 15.

11. Sharing of personal data with Data Processors

BharatPay may share personal data with banks, payment-system participants, regulated financial institutions, KYC and verification providers, cloud-hosting providers, information-security providers, customer-support providers, communication providers, analytics providers, professional advisers, auditors, collection or dispute-management providers, and other service providers that support the Services (collectively, "**Data Processors**"). We may also disclose personal data to government departments, law-enforcement agencies, courts, tribunals, regulators, or other persons where required or permitted by law.

Data Processors act **only on BharatPay’ s documented instructions**, or, where BharatPay is acting as a Data Processor, on the documented instructions of the relevant Data

Fiduciary. Contracts with Data Processors will address the purpose and scope of processing, confidentiality, security safeguards, assistance with rights requests and incidents, sub-processing controls, deletion or return of data, audit or assurance rights, and compliance with applicable law. BharatPay remains responsible for selecting and overseeing processors appropriately and will not authorise a processor to use personal data for its own unrelated commercial purposes.

We may share limited information with another Data Fiduciary where necessary to provide a Service requested by you, to complete a payment or settlement, to protect users and the financial ecosystem, or where required or permitted by law. Such sharing will be limited to the relevant purpose and information reasonably necessary for it.

12. Cross-border transfer of personal data

BharatPay may process or make personal data available outside India, including to cloud, security, support, or technology providers located in other jurisdictions, only for specified purposes and subject to applicable Indian law, contractual safeguards, security requirements, and any restrictions, conditions, or directions issued by the Central Government or a competent Indian authority. **Cross-border transfers are conducted subject to applicable Indian law and government restrictions.**

Before authorising a transfer, BharatPay will consider the nature of the data, the purpose and necessity of the transfer, the recipient's security and privacy commitments, access controls, onward-transfer restrictions, incident-reporting obligations, deletion or return requirements, and any localisation or regulatory requirement applicable to the relevant Service. Where required, we will obtain consent or provide an appropriate notice and will cooperate with lawful requests concerning access, correction, erasure, and security incidents.

13. Data breach and security incident handling

A personal-data breach includes unauthorised processing or accidental disclosure, acquisition, sharing, use, alteration, destruction, or loss of access that compromises the confidentiality, integrity, or availability of personal data. BharatPay maintains incident-management procedures to identify, contain, investigate, remediate, document, and learn from suspected or confirmed security incidents.

Security incidents are assessed and handled **in accordance with applicable legal requirements**, including any applicable timelines and formats for notifying the Data Protection Board of India, affected Data Principals, sectoral regulators, payment-system operators, law-enforcement authorities, or other competent bodies. Depending on the circumstances, communications may describe the nature of the incident, the categories of

data affected, likely consequences, steps taken by BharatPay, recommended protective measures, and contact information for assistance.

BharatPay will require relevant Data Processors to notify it without undue delay of incidents affecting personal data processed on BharatPay's behalf and to provide reasonable assistance with investigation, containment, notification, and remediation. We will maintain records of material incidents and take reasonable steps to prevent recurrence.

14. Responsibilities of the Data Fiduciary

BharatPay will process personal data in a lawful, fair, transparent, and purpose-limited manner; provide clear notices; obtain consent where required; respect valid withdrawals; maintain reasonable accuracy for the purposes of processing; implement reasonable security safeguards; retain personal data only as necessary or legally required; establish a dedicated grievance mechanism; oversee Data Processors; cooperate with lawful authorities; and maintain appropriate records, policies, training, and governance controls.

BharatPay will take reasonable measures to ensure that personal data under its control is complete, accurate, and consistent where the processing is likely to be used to make a decision affecting a Data Principal or disclosed to another Data Fiduciary. We will apply privacy and security considerations during product design, procurement, development, testing, deployment, and retirement. If BharatPay is notified as a **Significant Data Fiduciary** or becomes subject to enhanced obligations under applicable law, we will implement the additional requirements that apply to us, including any appointment, assessment, audit, impact-assessment, or reporting requirements.

15. Contact details and Grievance Officer

For privacy requests, consent withdrawal, correction, erasure, or questions about this Policy:

Privacy Team

BharatPay Technologies Private Limited

18th Floor, Atria Business Park, Senapati Bapat Marg, Lower Parel

Mumbai, Maharashtra 400013, India

Email: privacy@bharatpay.example.in

Privacy portal: <https://support.bharatpay.example.in/privacy>

Telephone: **+91 22 4896 2711**

Service hours: Monday to Saturday, 9:00 a.m. to 6:00 p.m. IST, excluding public holidays in Maharashtra

Grievance Officer

Ms. Ananya Kulkarni

Grievance Officer and Head—Privacy Operations

BharatPay Technologies Private Limited

18th Floor, Atria Business Park, Senapati Bapat Marg, Lower Parel

Mumbai, Maharashtra 400013, India

Email: grievance@bharatpay.example.in

Grievance portal: <https://support.bharatpay.example.in/privacy/grievance>

Telephone: +91 22 4896 2711

Please use the subject line “**DPDP Privacy Request**” or “**DPDP Grievance**” as applicable. We may request reasonable proof of identity or authority before disclosing, correcting, or deleting personal data. BharatPay will not ask you to disclose your password, PIN, CVV, or one-time password to process a privacy request.

16. Changes to the Privacy Policy

BharatPay may update this Privacy Policy to reflect changes in the Services, applicable law, regulatory guidance, security practices, or our processing activities. We will publish the revised version on our website and in the relevant app or customer portal, update the effective date and version, and provide additional notice where required. Where a change materially affects processing based on consent, we will obtain fresh consent where required and will not treat continued use alone as consent where applicable law requires a separate affirmative action.

Your continued use of the Services after the revised Policy becomes effective will be governed by the updated Policy to the extent permitted by law. We encourage you to review this Policy periodically. Previous versions may be requested from the Privacy Team.

References

[1] Digital Personal Data Protection Act, 2023 — Ministry of Electronics and Information Technology

[2] The Digital Personal Data Protection Act, 2023 — India Code

[3] Digital Personal Data Protection Rules, 2025 — Ministry of Electronics and Information Technology

This Policy should be read with the applicable text of the DPDP Act, rules, notifications, regulatory directions, and sector-specific requirements in force from time to time. 1 2 3